



Advancing Inclusion and Upholding Equality: A Brief on Gender and Related Terms

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Table of Contents

1. Introduction.....	03
2. CEDAW and Sri Lanka's Commitments under CEDAW.....	05
3. Understanding Gender: Concepts that Promote Social Inclusion.....	07
4. Sri Lanka's Journey Towards Greater Understanding of Gender.....	10
5. Conclusion.....	15
6. References.....	17
7. Annexures.....	19

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1. Introduction

The term ‘gender’ as both a concept and a framework for analysis has enhanced recognition, improved understanding and reinforced a more inclusive and progressive approach to human rights advocacy. This is particularly valuable in advancing the rights to equality, dignity, and justice, especially for women and girls, disproportionately affected by gender-based violence and discrimination.

This Brief - *Advancing Inclusion and Upholding Equality: A Brief on Gender and Related Terms* - prepared by the National Commission on Women aims to provide greater clarity and awareness on gender and related terms, while providing a brief overview of the evolution of these terms, in relation to Sri Lanka’s engagement with the same since the mid 1990s.

The National Commission on Women (NCW), is an independent statutory body, established under the Women Empowerment Act No. 37 of 2024. The Commission is mandated by law to promote, protect, and advance women’s rights in Sri Lanka, by introducing mechanisms to give effect to Sri Lanka’s obligations under the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW)¹, protect women from discrimination based on gender and sexual orientation², and raise awareness and disseminate information regarding women’s rights and internationally recognized standards relating to women’s rights³.

At the outset, it is important to note that the enactment of the Women Empowerment Act No. 37 of 2024 marked a significant and commendable step forward by Sri Lanka in advancing the rights of women. The Preamble to the Act is particularly noteworthy, as it expressly recognizes that the Universal Declaration of Human Rights affirms the principle of non-discrimination and declares that all human beings are born free and equal in dignity and rights, and are entitled to all rights and freedoms without distinction of any kind, including on the basis of gender. The Preamble further acknowledges that the Constitution of the Democratic, Socialist, Republic of Sri Lanka provides for the advancement of women through legislation, subordinate legislation, and executive action. In this context, the establishment of the National Women's Commission as a national-level institution is envisaged as an effective mechanism to promote and ensure the empowerment of women throughout the country⁴.

Whilst taking such pioneering, proactive and significant action, within the statutory framework, specifically relating to women’s rights, it is also crucial that inclusive and progressive approaches, are followed and adopted, consistently, so as to eradicate and curtail gender-based discrimination, and thereby promote equality amongst all people, without any distinction.

¹ Section 2(b), Women Empowerment Act No. 37 of 2024

² Section 2(d), Women Empowerment Act No. 37 of 2024

³ Section 6(m), Women Empowerment Act No. 37 of 2024

⁴ Preamble, Women Empowerment Act No. 37 of 2024

In this context, it is of critical importance, to understand the conceptualisation and definitions of ‘gender’ and related terms.

This Brief will refer to internationally accepted definitions of ‘gender’ in terms of the international standards and jurisprudence developed by CEDAW and the World Health Organization (WHO). Many of these definitions have already been recognized and adopted by the Ministry of Health, Ministry of Women and Child Affairs, and other executive bodies and independent commissions serving the interest of the Sri Lankan public.

Furthermore, this Brief aims to clarify the concepts of gender and related terminology in the context of the growing influence of transnational right-wing, nationalist, and anti-gender movements, which have increasingly sought to blur and, at times, deliberately distort these concepts. These anti-gender movements challenge the evolving understanding of human identity and undermine longstanding commitments to ensuring that all individuals are guaranteed dignity, equality, equal protection under the law, and freedom from discrimination.

Given Sri Lanka’s long-standing engagement with CEDAW, since the early 1980s, this Brief will also provide a glimpse into the history and evolution of gender and related terms in Sri Lanka, and the positive advancements made over the years to fulfil Sri Lanka’s obligations under CEDAW.

Since ratifying and acceding to CEDAW in 1981, Sri Lanka has remained committed to advancing and promoting the rights of women and girls, through progressive and proactive legal and policy reforms. Recent milestones include the enactment of the Women Empowerment Act No. 37 of 2024 and the establishment of the National Commission on Women, which aims to support the country’s efforts to promote gender equality and fulfil its CEDAW obligations.

Section 2 of the Act sets out its objectives. In particular, Section 2(b) provides that one of the objects of the Act is “to introduce mechanisms to give effect to the obligations undertaken by the Government of Sri Lanka in relation to women under the Convention on the Elimination of All Forms of Discrimination Against Women, and in terms of applicable laws.” Accordingly, in enacting the Women Empowerment Act No. 37 of 2024, the legislature was fully cognizant of Sri Lanka’s obligations under CEDAW and implementation thereof.

All countries which have ratified CEDAW are required to submit national reports, at least every four years, with regard to the measures the country has taken to comply with their treaty obligations. The Ministry of Women and Child Affairs is the state entity which has been charged with the obligation of drafting Sri Lanka’s periodic reports under CEDAW.

As Sri Lanka prepares its 2027 interim report to the CEDAW Committee, continued progress in addressing gender-based violence and strengthening protections for the rights and dignity of all individuals, including persons of diverse gender identities, is essential.

2. CEDAW and Sri Lanka's Commitments under CEDAW

The CEDAW Convention was adopted by the United Nations General Assembly in 1979. Two years later in 1981, Sri Lanka ratified CEDAW, without any reservations, making it one of the first countries in the region to fully commit to the obligations under CEDAW. By ratifying CEDAW, the Sri Lankan government has pledged its unequivocal and unqualified commitment, to “take all appropriate measures, including legislation, to modify or abolish existing laws, regulations, customs and practices which constitute discrimination against women”⁵ whilst also “recognising that the discrimination of women based on sex and gender is inextricably linked with other factors that affect women, such as race, ethnicity, religion or belief, health, status, age, class, caste, sexual orientation and gender identity.”⁶

CEDAW being the primary and the foremost international instrument on women's rights, **has achieved near-universal ratification with 189 States⁷ having ratified it as of May 2026.** CEDAW is the culmination of more than thirty years of work by the United Nations Commission on the Status of Women, a body established in 1946 to monitor the situation of women and to promote women's rights. The Commission's work has been instrumental in bringing to light all the areas in which women are denied equality with men. These efforts for the advancement of women have resulted in several declarations and conventions, of which CEDAW is the central and most comprehensive document, which has a binding effect on States parties.⁸

The CEDAW Committee is the body of independent experts that monitors implementation of CEDAW. The CEDAW Committee consists of 23 independent experts on women's rights from around the world, and currently includes renowned Sri Lankan women's human rights advocate Prof. Rangita de Silva de Alwis, who was re-elected to the CEDAW Committee for a second consecutive term in June 2026.

States that ratify the Convention (referred to as ‘States parties’) are legally obliged to:

1. Eliminate all forms of discrimination against women in all areas of life;
2. Ensure women's full development and advancement in order that they can exercise and enjoy their human rights and fundamental freedoms in the same way as men; and
3. Allow the CEDAW Committee to scrutinize their efforts to implement the treaty by reporting to the body at regular intervals.

During its public sessions, the CEDAW Committee reviews each State party report and addresses its concerns and recommendations to the State party in the form of Concluding Observations.

⁵ Article 2(f) of the CEDAW Convention. Available online at [ohchr.org](https://www.ohchr.org)

⁶ Paragraph 18 of General Recommendation 28 on Article 2 of the CEDAW Convention. Available online at [ohchr.org](https://www.ohchr.org).

⁷ See OHCHR Dashboard at indicators.ohchr.org.

⁸ See [ohchr.org](https://www.ohchr.org) for more information.

CEDAW is a dynamic and organic instrument that is continuously updated to address emerging issues, challenges, and developments brought before the CEDAW Committee. This is achieved through the adoption of General Recommendations, which provide authoritative interpretations of the Convention's provisions concerning women's rights and States' obligations under CEDAW. In addition, these Recommendations offer guidance on the information that States parties should include in their periodic reports. The CEDAW Committee issues General Recommendations periodically in accordance with the mandate conferred by Article 21 of the Convention.

As of 2026, there are 40 General Recommendations⁹ which help interpret and expand the meanings and intentions of the substantive provisions of CEDAW. These General Recommendations (GR) often deal with issues related to specific articles that have been noted as a concern during consideration of State party reports, such as gender-based violence against women (GR 19), women migrant workers (GR 26), older women (GR 27), rural women (GR 34) and gender-related dimensions of climate change (GR 37), amongst others.

In 1986, Sri Lanka submitted its first periodic report to the CEDAW Committee. Since then, eight periodic reports were submitted with the latest - the ninth periodic report - being reviewed by the CEDAW Committee in February 2025.

In its Concluding Observations to Sri Lanka's Ninth Periodic Report, the CEDAW Committee welcomed the progress achieved since 2017 albeit noted "with concern the high prevalence of sexual violence and other forms of gender-based violence against women" and recommended that the Sri Lankan government enforces "a zero-tolerance policy on gender-based violence against women, with a particular focus on women from marginalized groups."¹⁰

Since ratifying CEDAW, Sri Lanka has made significant legal and policy advances in protecting women's rights and promoting gender equality. Key milestones include the adoption of the Women's Charter and establishment of the National Committee on Women in 1993; committing to the 1995 Beijing Declaration and Platform for Action following Sri Lanka's participation at the Beijing World Conference on Women; reforms to criminalize sexual harassment and strengthen rape laws; the enactment of the Prevention of Domestic Violence Act No. 24 of 2005; and the introduction of an amendment to the Local Authorities Elections (Amendment) Act No. 16 of 2017 which guarantees a minimum mandatory 25% quota for women in local government. More recent developments include, measures to recognize and protect transgender persons, the enactment of the Women Empowerment Act in 2024, expanded employment opportunities for women through revised labour regulations in 2026, and the ratification of ILO Convention No. 190 on eliminating violence and harassment in the world of work.

⁹ See [UN Treaty Body Database](#) for full list of all CEDAW General Recommendations .

¹⁰ CEDAW Concluding Observations on the 9th Periodic Report of Sri Lanka, paragraphs 27(a) and 28(a). Available [online](#).

3. Understanding Gender: Concepts that promote Social Inclusion

When considering gender as both a concept and a framework for analysis, it is important to understand and distinguish the difference between ‘gender’ as a *term* and ‘gender’ as a *framework for analysis*.

Gender as a *term* refers to the socially constructed roles, expectations, attributes, and behaviours that societies assign to individuals based on their biological sex, determined at birth.

Gender as a *framework for analysis* enables a deeper understanding of how patriarchal power structures shape social relations and influence access to opportunities, resources, and decision-making. It highlights how certain individuals and groups may be privileged or marginalized through the intersection of multiple identities, including ethnicity, caste, class, religion, disability, age, and other social characteristics. Examining these intersecting identities helps reveal the complex ways in which power, inequality, and discrimination are experienced across different social contexts.

3.1 Gender

Gender as a *term*, refers to the socially constructed characteristics¹¹ of women and men, and includes norms, roles, behaviours, activities, and attributes that a given society, at a given time, considers appropriate for men and women.¹² It must be emphasised that ‘gender’ is also distinct from ‘sex’ and the two terms should not be used interchangeably.¹³ Sex refers to the different biological and physiological characteristics of female and male persons, including chromosomes, hormones, sexual and reproductive organs, whilst gender refers to the socially constructed characteristics of women, men, girls, boys and other gender identities.¹⁴

Paragraph 5 of CEDAW General Recommendation No. 28 explains that sex is biological, while gender includes socially constructed roles and expectations that can influence power and rights, and may change over time:

“... The term ‘sex’ here refers to biological differences between men and women. The term ‘gender’ refers to socially constructed identities, attributes and roles for women and men and society’s social and cultural meaning for these biological differences resulting in hierarchical relationships between women and men and in the distribution of power and rights favouring men and disadvantaging women. This social positioning of women and men is affected by political, economic, cultural, social, religious, ideological and environmental factors and can be changed by culture, society and community.”

¹¹ World Health Organisation. (2021). *Q&A on Gender and Health*. Available [online](#).

¹² UN Women Training Centre. (n.d.). *Gender Equality Glossary*. Available [online](#).

¹³ Ibid

¹⁴ Ministry of Health & Mass Media. (2025). *Guideline for Gender Mainstreaming in Health Policies*. Available [online](#).

Using gender as a *framework for analysis* – often referred to as applying a ‘gendered lens’ or a ‘gendered analysis’ – can offer greater clarity to concepts such as gender-based violence and discrimination.

3.2 Gender-Based Violence

Paragraph 19 of CEDAW General Recommendation No. 28 defines gender-based violence as a form of discrimination that disproportionately affects women and violates women’s human rights. The Convention also calls on all States Parties to prevent, prosecute and punish such forms of violence:

“Discrimination against women on the basis of sex and gender comprises, ... gender-based violence, namely, violence that is directed against a woman because she is a woman or violence that affects women disproportionately. It is a form of discrimination that seriously inhibits women’s ability to enjoy and exercise their human rights and fundamental freedoms on the basis of equality with men. It includes acts that inflict physical, mental or sexual harm or suffering, threats of such acts, coercion and other deprivations of liberty, the violence that occurs within the family or domestic unit or within any other interpersonal relationship, or violence perpetrated or condoned by the State or its agents regardless of where it occurs. Gender-based violence may breach specific provisions of the Convention, regardless of whether those provisions expressly mention violence. States parties have a due diligence obligation to prevent, investigate, prosecute and punish such acts of gender-based violence.”

3.3 Intersectionality

Paragraph 18 of CEDAW General Recommendation No. 28, explains that women can face overlapping forms of discrimination based on gender, along with factors such as ethnicity, religion, class, gender identity or sexual orientation, or any other factor.

“Intersectionality is a basic concept for understanding the scope of the general obligations of States parties contained in article 2. The discrimination of women based on sex and gender is inextricably linked with other factors that affect women, such as race, ethnicity, religion or belief, health, status, age, class, caste and sexual orientation and gender identity. Discrimination on the basis of sex or gender may affect women belonging to such groups to a different degree or in different ways to men. States parties must legally recognize such intersecting forms of discrimination and their compounded negative impact on the women concerned and prohibit them.”

A gendered analysis is therefore helpful to expose power dynamics in society which often privilege some groups of people, while also intentionally disempowering other groups of people based on intersecting identities, including but not limited to one’s ethnicity, religious belief, class, caste, disability and / or gender identity.

In this regard, *gender identity* is one of several intersecting aspects of identity, alongside factors such as ethnicity, religious beliefs, class, caste, and disability status. It must be distinguished from *gender*, which refers to the socially constructed roles, behaviours, and attributes associated with a person's sex assigned at birth.

3.4 Gender Identity

Gender identity is understood to refer to each person's deeply felt internal and individual experience of gender.¹⁵ When an individual's gender identity differs from the biological sex assigned to them at birth, they are commonly considered to be transgender...whereas when an individual's gender identity aligns with their sex assigned at birth, they are commonly considered cisgender.¹⁶ Being transgender is not only about physical appearance or medical procedures - it's about how someone identifies and experiences their gender.¹⁷ When individuals or groups do not 'fit' established gender norms they often face violence, stigma, discrimination, and / or social exclusion.¹⁸

Paragraph 12 of CEDAW General Recommendation No. 35 recognizes that gender-based violence may affect some women to different degrees or in different ways, given the wide range of overlapping factors that could negatively impact their lives. The Committee therefore recommends that appropriate legal and policy reforms are adopted to respond to the same.

“... the Committee confirmed that discrimination against women was inextricably linked to other factors that affected their lives. The Committee, in its jurisprudence, has highlighted the fact that such factors include women's ethnicity/race, indigenous or minority status, colour, socioeconomic status and/or caste, language, religion or belief, political opinion, national origin, marital status, maternity, parental status, age, urban or rural location, health status, disability, property ownership, being lesbian, bisexual, transgender or intersex, illiteracy, seeking asylum, being a refugee, internally displaced or stateless, widowhood, migration status, heading households, living with HIV/AIDS, being deprived of liberty, and being in prostitution, as well as trafficking in women, situations of armed conflict, geographical remoteness and the stigmatization of women who fight for their rights, including human rights defenders. Accordingly, because women experience varying and intersecting forms of discrimination, which have an aggravating negative impact, the Committee acknowledges that gender-based violence may affect some women to different degrees, or in different ways, meaning that appropriate legal and policy responses are needed.”

Recognizing gender identity is therefore critical and relevant to the implementation of CEDAW since it is one of the many intersecting identities which would result in gender-based

¹⁵ Ministry of Health & Mass Media. (2025). *Guideline for Gender Mainstreaming in Health Policies*. Available [online](#).

¹⁶ World Health Organisation. (2016). *FAQ on Health and Sexual Diversity - An Introduction to Key Concepts*, Geneva. Available [online](#).

¹⁷ Ministry of Health & Mass Media. (2025). *Guideline for Gender Mainstreaming in Health Policies*. Available [online](#).

¹⁸ World Health Organisation. (2021). *Q&A on Gender and Health*. Available [online](#).

discrimination or violence. As paragraph 12 of General Recommendation No. 35 notes, states parties are obligated to recognize and address these intersecting forms of discrimination and violence through appropriate legal protections and policies.

4. Sri Lanka's Journey towards greater understanding of Gender

Since Sri Lanka's ratification of CEDAW in 1981, concepts such as gender have progressively evolved and expanded within government policy and institutional practice. In order to understand this evolution, and Sri Lanka's own engagement with concepts such as gender, it is important to first understand the history of women's rights, resistance and activism in Sri Lanka.

Since a comprehensive historical overview is beyond the scope of this Brief, this section will focus on three key periods: before 1975, between 1975 and 1995, and after 1995. This structure situates Sri Lanka's own engagement on women's rights and gender equality in relation to two milestone events that shaped women's rights globally and in Sri Lanka: 1975, declared by the UN as International Women's Year, and 1995, the year in which the Beijing Declaration and Platform for Action was adopted by 189 governments, including by Sri Lanka.

4.1 Before 1975...

As Sri Lankan feminist scholars Kumari Jayawardena (1986) and Selvy Thiruchandran (2012) have noted, Sri Lanka has a long history of women's activism and resistance, that precedes the UN and its impact both globally and locally. This history is important, "because those who want to continue to keep the women of our countries in a position of subordination find it convenient to dismiss feminism as a foreign ideology" (Jayawardena, 1986, p.ix).

In *Feminism and Nationalism in the Third World* (1986), Jayawardena examines the "early years of feminism and the emergence of the 'new woman' in several Asian countries", including in Sri Lanka, in which the struggles for women's emancipation were an essential and integral part of national resistance movements (Jayawardena, 1986, p. ix). Echoing Jayawardena, Thiruchandran points out that "ideas on women's rights and feminism have been in existence from time immemorial though they crystalized into constitutional agendas and activism much later" (Thiruchandran, 2012, p.5).

For example the *Therigatha*, poems of the bikkhuni of 80 BC, referred to "liberation both from the kitchen utensils and their husbands" (Thiruchandran, 2012, p.5). Similarly, Gajaman Nona – the best known Sinhala woman poet of the 18th century "broke with tradition and learnt the Sinhala language from a scholar Buddhist monk" (Thiruchandran, 2012, p.8). Runa Hamine, also from the same period, and commissioned to translate the Bible into Sinhala verse

complained of the meagre reward and lack of recognition, and was “astute enough to realize that both arose from the fact that she was a woman” (Jayawardena, 1986, p.118).

In the early 1970s, Sri Lankan laws and policies did not use the term ‘gender’. Official texts focussed instead on ‘women,’ ‘female,’ ‘mothers,’ and ‘wives’ whilst State policy focussed on maternal and child health, nutrition, maternity protection, and welfare services for women. For example, the Maternity Benefits Ordinance¹⁹ focused on maternity leave and protections for ‘women workers’, and labour laws such as the Shop and Office Employees Act²⁰ regulated night work and employment conditions for ‘female employees’. During this time, women were largely treated as caregivers within the family structure.

4.2 Between 1975 and 1995...

A major shift began after the International Women’s Year in 1975 and the UN Decade for Women (1975–1985)^{21 22} which was “a global phenomenon which made Sri Lanka’s women, the Sri Lankan state and its bureaucratic structures become alive to various issues that affect women” (Thiruchandran, 2012, p. 80). This is reflected in the speech delivered by Vinitha Jayasinghe, Director of Women’s Bureau and Head of Sri Lanka’s delegation at the UN World Conference on Women in Copenhagen in 1980:

“As the result of keen awareness and conscious raising after 1975, the non-governmental organisations in Sri Lanka have been able to act as a pressure group to activate the Government to create a national machinery in the Government, which can serve as a focal point for women’s affairs. Accordingly, the Women’s Bureau of Sri Lanka was established in November 1978 to make recommendations to the Government with a view to ensuring that equality is enjoyed de facto and not merely de jure and that rights enshrined in the Constitution are realities and not merely pious legalities.”

Following the establishment of the Women’s Bureau in 1978, Sri Lanka increasingly adopted an approach which emphasized women’s participation in economic and social development rather than only welfare. The Women’s Bureau implemented projects over the years particularly in the Integrated Rural Development Programs, while promoting the organization of Women’s Societies with the aim of ‘empowering women’ at the grassroots level.²³

Reflecting the globally dominant ‘Women in Development’ terminology of the period, official terminology increasingly referred to ‘women’s development’, ‘women’s participation’, and ‘women’s affairs’.²⁴

¹⁹ See Maternity Benefits Ordinance. Available [online](#).

²⁰ See Shop and Office Employees Act. Available [online](#).

²¹ See [UN Conferences on Women, Gender & Equality, Mexico City, 1975](#).

²² Wickremasinghe, M and Kodikara, C. (2012). *Representation in Politics: Women and Gender in the Sri Lankan Republic*, Chapter 20, p. 781 in Asanga Welikala (ed) *The Sri Lankan Republic at 40: Reflections on Constitutional History, Theory and Practice*, Centre for Policy Alternatives, Colombo. Available [online](#).

²³ Asian Development Bank. (1999). *Country Briefing Paper on Women in Sri Lanka*, p.19. Available [online](#).

²⁴ Jayaweera, S. (1986). *The Integration of Sri Lankan Women in Development Planning*, Centre for Women’s Research (abridged version by Canadian Women’s Studies). Available [online](#).

After Sri Lanka ratified CEDAW in 1981, the language became more rights-based. However, CEDAW itself, adopted in 1979, initially referred to ‘women’, ‘discrimination against women’, and equality ‘on the basis of sex’. Sri Lanka’s early implementation therefore focused on women’s equality, elimination of discrimination against women, and women’s legal and political participation. This can be seen in Sri Lanka’s initial report to the CEDAW Committee in 1987 and the increased attention to equality before the law, employment opportunities, education, and political participation for women.²⁵ The terminology used was still ‘women’ and ‘sex’.

The Sri Lanka Women’s Charter, adopted in 1993²⁶, also focussed overwhelmingly on ‘women’s rights’ and ‘discrimination against women’, albeit contained some early uses of ‘gender equality’ terminology, reflecting an emerging conceptual development. For example, the Preamble of the Charter speaks of ensuring “justice and equity and the recognition of gender equality in all areas of life in Sri Lanka”. Despite this, the provisions of the Charter still largely refer to ‘discrimination against women’. For example, Section 2 on Political and Civil Rights refers to “measures to eliminate discrimination against women in the public and private sectors” and Section 7 on Rights Within the Family advocates measures to “eliminate discrimination against women in all matters relating to marriage and family relations.”

4.3 After 1995...

The decisive development occurred in 1995, after the Fourth World Conference on Women was held in Beijing. During this conference, representatives from 189 governments, including from Sri Lanka, adopted the Beijing Declaration and Platform for Action, committing to human rights of women and girls which were unprecedented in scope.²⁷

The UN Division for Women, in its review of the four World Conferences on Women, noted the following:

*“The fundamental transformation that took place in Beijing was the recognition of the need to shift the focus from women to the concept of gender, recognizing that the entire structure of society, and all relations between men and women within it, had to be re-evaluated. Only by such a fundamental restructuring of society and its institutions could women be fully empowered to take their rightful place as equal partners with men in all aspects of life. This change represented a strong reaffirmation that women’s rights were human rights and that gender equality was an issue of universal concern, benefiting all.”*²⁸

The focus was no longer only on improving the status of women, but also on examining the socially constructed gender roles between men and women, and the ways in which these social

²⁵ CEDAW. (1987). *Initial Report by States Parties – Sri Lanka* [CEDAW/C/5/Add.29/Amend.1] Available [online](#).

²⁶ Sri Lanka Women’s Charter. (1993). National Committee on Women, Ministry of Women’s Affairs. Available [online](#).

²⁷ UN Women. (1995). Beijing Declaration and Platform for Action. Available [online](#).

²⁸ See <https://www.un.org/en/conferences/women/beijing1995> for more information.

roles prescribed more power to men, thereby disempowering women, not only in the home, but also through institutional structures such as in the workplace, in parliament, in religious establishments and elsewhere. During the Beijing Conference, governments committed to ‘ensuring that a gender perspective is reflected in all policies and programmes’²⁹.

From 1995 onward therefore, Sri Lankan policy language shifted from ‘women’s development’ and ‘women’s rights’ to ‘gender equality’, ‘gender mainstreaming’, ‘gender-sensitive’ policies, ‘gender-responsive budgeting’, and ‘gender-based violence’. Ministries and state institutions began establishing ‘gender focal points’, ‘gender units’, and conducting ‘gender training’ programmes and the terminology surrounding violence evolved from ‘violence against women’, to ‘gender-based violence’.³⁰

The term ‘gender’ is now fully institutionalized within Sri Lanka’s governance structure and civil society. National policies and guidelines such as the National Policy on Gender Equality and Women’s Empowerment 2023-2033,³¹ the Multi-Sectoral National Action Plan to address Sexual and Gender-Based Violence in Sri Lanka 2024-2028,³² the National Action Plan on Women, Peace, and Security 2023-2027³³ and the Manual on Gender Mainstreaming and Gender-Responsive Budgeting (2019)³⁴ use the terminology of ‘gender equality’, ‘gender-based discrimination’, ‘gender-responsive governance’, and ‘gender mainstreaming’ as standard official vocabulary. Sri Lanka’s periodic reports to various UN and other international reporting mechanisms also routinely use language such as ‘gender equality,’ ‘gender-sensitive monitoring,’ and ‘gender-based violence.’^{35 36 37}

Sri Lanka’s existing multi-lateral partners in financing, development and trade also require and monitor Sri Lanka’s commitment to gender inclusivity and addressing gender-based violence. Sri Lanka’s engagement with the International Monetary Fund (IMF), the Asian Development Bank (ADB), and the World Bank has explicit obligations that cannot be meaningfully separated from its duties under CEDAW. The IMF’s Executive Board, in completing its first review of Sri Lanka’s Extended Fund Facility (EFF), a 48-month, approximately US\$3 billion programme approved in March 2023, explicitly recommended that Sri Lanka prioritise reforms to reduce gender gaps in the labour market as part of its broader structural reform agenda.³⁸ When the ADB approved a \$350 million special policy-based loan to Sri Lanka for economic stabilization in May 2023, it explicitly acknowledged that the economic crisis had

²⁹ UN Women. (1995). Beijing Declaration and Platform for Action, Paragraph 38. Available [online](#).

³⁰ Perera, S. (2019). *Manual on Gender Mainstreaming and Gender-Responsive Budgeting*, Ministry of Women & Child Affairs and Dry Zone Development. Available [online](#).

³¹ National Policy on Gender Equality and Women’s Empowerment (2023-2033), Ministry of Women and Child Affairs. Available [online](#).

³² Multi-Sectoral National Action Plan to address Sexual and Gender-Based Violence in Sri Lanka (2024–2028), Ministry of Women and Child Affairs. Available [online](#).

³³ National Action Plan on Women, Peace and Security (2023-2027), Ministry of Women and Child Affairs. Available [online](#).

³⁴ Perera, S. (2019). *Manual on Gender Mainstreaming and Gender-Responsive Budgeting*, Ministry of Women & Child Affairs and Dry Zone Development. Available [online](#).

³⁵ Sri Lanka’s 9th Periodic Report to CEDAW Committee (2022, August 10). Available [online](#).

³⁶ Sri Lanka’s National Report submitted to Human Rights Council’s Working Group on the Universal Periodic Review (2022, December 30). Available [online](#).

³⁷ Sri Lanka’s Progress in Achieving the Sustainable Development Goals (2024). Available [online](#).

³⁸ International Monetary Fund Country Report No. 23/408, *Sri Lanka* (December 2023). Available [online](#).

disproportionately affected poor and vulnerable women, positioning women's welfare as a central element of the loan's development rationale.³⁹ The ADB's Country Partnership Strategy for Sri Lanka 2024–2028 identifies 'Gender Equality and Social Inclusion' (GESI) as one of three core thematic priorities, to be integrated across all its strategic objectives including public, financial management and private sector development.⁴⁰ The World Bank's framework is equally explicit: the World Bank's 2024–2030 Gender Strategy expressly refers to gender equality obligations in CEDAW.⁴¹ The European Union's GSP+ programme, which grants Sri Lanka preferential market access, is conditional on implementing 27 international conventions covering labour, women's rights and human rights standards, making CEDAW compliance a prerequisite for trade competitiveness.⁴²

The term 'gender identity' emerged in Sri Lanka's public discourse from around 2010 onwards as part of a broader global evolution in human rights, gender equality and inclusive language. In 2010, the CEDAW Committee issued its General Recommendation No. 28 (GR 28) which sought to clarify States Parties' obligations under Article 2 of the Convention to take measures against discrimination not only based on sex and gender but also based on gender identity and sexual orientation. While Article 2 of CEDAW refers to substantive equality, GR 28 sought to expand the scope of equality by recognising and clarifying that women can face overlapping forms of discrimination based on gender along with other intersecting factors including but not limited to ethnicity, religion, class, gender identity and / or sexual orientation.

CEDAW is a living and evolving international treaty, continuously interpreted and expanded through General Recommendations issued by the CEDAW Committee under Article 21 of the Convention. As of 2026, 40 General Recommendations clarify State obligations and address evolving issues like gender-based violence, gender identity, sexual orientation, migration, elderly women, rural women, and climate change. Since Sri Lanka ratified CEDAW in 1981, these 40 General Recommendations remain binding on all States Parties, including Sri Lanka.

Given this brief overview of the history and evolution of gender and related terminology, it is important to recognize that Sri Lanka has implemented CEDAW not through a single comprehensive 'CEDAW Act,' but rather through a combination of constitutional principles, legislation, policies, administrative mechanisms, and sector-specific programmes. Set out below is a chronology of some of the key developments that followed Sri Lanka's ratification of CEDAW in 1981, illustrating how concepts such as gender have progressively evolved and expanded within government policy and institutional practice:

³⁹ Asian Development Bank. (2023). *ADB approves \$350 Million for Sri Lanka Economic Stabilization Program*, ADB News Release (29 May). Available [online](#).

⁴⁰ Asian Development Bank. (2024). *Sri Lanka 2024-2028: Fostering Sustainable Recovery, Building Resilience, and Reviving Growth*. Available [online](#).

⁴¹ World Bank Group. (n.d.). *Gender Strategy 2024-2030: Accelerate Gender for a Sustainable, Resilient and Inclusive Future*. Available [online](#).

⁴² See European Union GSP Hub, *Country Information: Sri Lanka* for more information. Available [online](#).

1993	Women's Charter is approved by the Sri Lankan Cabinet of Ministers.
1993	The National Committee on Women is established to implement and monitor progress of the Women's Charter.
1995	Sri Lanka attends the Fourth World Conference on Women in Beijing and adopts the Beijing Declaration and Platform for Action.
1995	Penal Code Amendments Act No. 22 of 1995 introduced Section 345 to criminalize sexual harassment; repealed and replaced Section 363 to expand rape laws.
1997	Ministry of Women's Affairs established as a separate Ministry.
2003	Citizenship Amendment Act No. 16 of 2003 amended to allow Sri Lankan mothers to pass on their citizenship to their children.
2005	Prevention of Domestic Violence Act No. 24 of 2005.
2016	Ministry of Health General Circular No. 01-34/2016 on issuance of Gender Recognition Certificate for transgender people.
2017	Local Authorities Election (Amendment) Act No. 16 of 2017 introduced a mandatory 25% quota for women at local government.
2022	Inspector General's Circular (2740/2022) relating to 'Matters to be considered when dealing with transgendered persons and persons who have undergone gender transition.'
2023	Anti-Corruption Act, No. 9 of 2023, criminalizing sexual bribery.
2024	Women Empowerment Act No. 37 of 2024.
2025	Sri Lanka Police Guidelines for Police Officers to Protect the Rights of Transgender Persons.
2026	Extraordinary Gazette (30 Jan 2026), amending existing regulations under the Shop and Office Employees (Regulation of Employment and Remuneration) Act permitting the employment of women over the age of 18 for night work in the hospitality and food service industries, subject to strict conditions to safeguard their safety, health and welfare.
2026	ILO Convention No. 190 of 2019 on the Elimination of Violence and Harassment in the World of Work ratified by Sri Lanka.

5. Conclusion

Since ratifying the CEDAW Convention in the early 1980s without reservations, Sri Lanka has remained committed to advancing, promoting and safeguarding the rights of all women and girls, as equal citizens, entitled to equality, dignity, and respect, without any compromise or qualification.

Over the years, developments in science, society, and culture have contributed to the continued evolution of human rights standards, including those relating to women's rights and gender equality. Sri Lanka has sought to respond to these developments and progressively align its legal and policy frameworks with emerging standards, while recognizing the challenges associated with the full implementation of its obligations under CEDAW.

In February 2025, the Government of Sri Lanka reported to the CEDAW Committee on the enactment of the Women Empowerment Act No. 37 of 2024 and the forthcoming establishment

of the National Commission on Women, mandated to promote and protect the rights of all women and girls.

The National Commission on Women views these developments as important milestones in strengthening the national institutional framework for gender equality and women's empowerment. In light of its mandate, the Commission looks forward to supporting Sri Lanka's continued efforts to advance women's rights and fulfil its commitments under CEDAW. In this regard the Commission will strive to address the issues and implement the recommendations contained in the CEDAW Committee's Concluding Observations on the Ninth Periodic Report of Sri Lanka published on 28 February 2025.

In its Concluding Observations, the CEDAW Committee acknowledged the progress made by Sri Lanka since 2017. However, it also expressed concern over the continued high incidence of sexual violence and other forms of gender-based violence against women, and urged the government to adopt and enforce a "zero-tolerance policy on gender-based violence against women," with particular attention to women from marginalized communities⁴³. In 2027, Sri Lanka is scheduled to submit an interim report to the CEDAW Committee on steps taken to implement selected recommendations, including those related to gender-based violence against women and girls⁴⁴. This provides a key opportunity to demonstrate meaningful and substantial progress in addressing the priority concerns identified by the Committee.

In this context, the National Commission on Women underscores the importance of ensuring that legislative, policy, and institutional measures continue to reflect Sri Lanka's commitment to gender equality, non-discrimination, and the protection of the rights of all individuals. It is important that the country continues to demonstrate real and tangible progress in advancing women's rights, while upholding its commitment, to safeguarding the rights and dignity of all communities, including persons of diverse gender identities.

⁴³ CEDAW Committee. (2025). Concluding Observations on Sri Lanka's 9th Periodic Report, Paragraphs 27(a) and 28(a). Available [online](#).

⁴⁴ CEDAW Committee. (2025). Concluding Observations on Sri Lanka's 9th Periodic Report, Paragraph 68. Available [online](#).

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7. Annexures

Annexure I

Other Internationally Recognized Definitions of Gender and Related Terms

In addition to CEDAW, gender and related terms have been widely recognized, accepted and endorsed through a range of UN resolutions, guidelines and other international and national instruments. Some of these have been listed below to provide further clarity on gender and related terms.

1. World Health Organization (WHO)

The WHO's *Q&A on Gender and Health*, as well as the *FAQ on Health and Sexual Diversity* have provided clarity on gender and related terms from a scientific and medical perspective.

Gender

*“Gender refers to socially constructed characteristics of women and men – such as norms, roles and relations of and between groups of women and men. Gender norms, roles and relations vary from society to society and evolve over time. They are often upheld and reproduced in the values, legislation, education systems, religion, media and other institutions of the society in which they exist. When individuals or groups do not “fit” established gender norms they often face stigma, discriminatory practices or social exclusion – all of which adversely affect health. Gender is also hierarchical and often reflects unequal relations of power, producing inequalities that intersect with other social and economic inequalities.”*⁴⁵

Gender and Sex

*“Gender interacts with but is different from sex. The two terms are distinct and should not be used interchangeably. It can be helpful to think of sex as a biological characteristic and gender as a social construct. Sex refers to a set of biological attributes in humans and animals. Sex is mainly associated with physical and physiological features including chromosomes, gene expression, hormone level and function, and reproductive and sexual anatomy.”*⁴⁶

Gender Identity

“Gender Identity is understood to refer to each person’s deeply felt internal and individual experience of gender, which may or may not correspond with the sex assigned at birth, including the personal sense of the body (which may involve, if freely chosen, modification of bodily appearance or function by medical, surgical or other means) and other expressions of gender, including dress, speech, and mannerisms. Gender identity exists on

⁴⁵ World Health Organisation. (2021). *Q&A on Gender and Health*. Available [online](#).

⁴⁶ Ibid

*a spectrum. This means that an individual's gender identity is not necessarily confined to an identity that is completely male or completely female. When an individual's gender identity differs from their assigned sex, they are commonly considered to be transgender, gender fluid, and/or gender queer. Whereas when an individual's gender identity aligns with their assigned sex, they are commonly considered cisgender.”*⁴⁷

2. 1995 Beijing Declaration and Platform for Action

The Beijing Declaration and Platform for Action of 1995⁴⁸ is a visionary agenda for the empowerment of women. Even today, more than three decades later, it remains the most comprehensive global policy framework and blueprint for action and is a current source of guidance and inspiration to realize gender equality and the rights of women and girls globally. This landmark text was the outcome of the Fourth World Conference on Women, held in Beijing, in 1995. After two weeks of political debate, exchange of information on good practice and lessons learned, and sharing of experiences, representatives of 189 Governments agreed to commitments that (at the time) were unprecedented in scope.

Paragraph 113

“The term ‘violence against women’ means any act of gender-based violence that results in, or is likely to result in, physical, sexual or psychological harm or suffering to women, including threats of such acts, coercion or arbitrary deprivation of liberty, whether occurring in public or private life. Accordingly, violence against women encompasses but is not limited to the following:

(a) Physical, sexual and psychological violence occurring in the family, including battering, sexual abuse of female children in the household, dowry-related violence, marital rape, female genital mutilation and other traditional practices harmful to women, non-spousal violence and violence related to exploitation;

(b) Physical, sexual and psychological violence occurring within the general community, including rape, sexual abuse, sexual harassment and intimidation at work, in educational institutions and elsewhere, trafficking in women and forced prostitution;

(c) Physical, sexual and psychological violence perpetrated or condoned by the State, wherever it occurs.”

Paragraph 118

“Violence against women is a manifestation of the historically unequal power relations between men and women, which have led to domination over and discrimination against women by men and to the prevention of women's full advancement. Violence against women throughout the life cycle derives essentially from cultural patterns, in particular the harmful

⁴⁷ World Health Organisation. (2016). *FAQ on Health and Sexual Diversity - An Introduction to Key Concepts*, Geneva. Available [online](#).

⁴⁸ Beijing Declaration and Platform for Action. (1995). Available [online](#).

effects of certain traditional or customary practices and all acts of extremism linked to race, sex, language or religion that perpetuate the lower status accorded to women in the family, the workplace, the community and society.”

3. ILO Convention No. 190 of 2019 on the Elimination of Violence and Harassment in the World of Work

On 16 April 2026, Ambassador Sumith Dassanayake, Permanent Representative of Sri Lanka to the United Nations in Geneva, ratified ILO Convention No. 190 of 2019 on the Elimination of Violence and Harassment in the World of Work. While ratifying the Convention, the Ambassador reaffirmed the Government’s commitment to respect, promote and realize the rights of everyone to a world of work that is free from violence and harassment, including gender-based violence and harassment. “By ratifying this important Convention, we reaffirm Sri Lanka’s commitment to promote an environment of zero tolerance to violence and harassment in the world of work. Pursuant to the ratification, Sri Lanka is taking steps to introduce necessary legal provisions domestically by amending its existing labour laws for the implementation of this Convention”.⁴⁹

Article 1(a):

“The term ‘violence and harassment’ in the world of work refers to a range of unacceptable behaviours and practices, or threats thereof, whether a single occurrence or repeated, that aim at, result in, or are likely to result in physical, psychological, sexual or economic harm, and includes gender-based violence and harassment.”

Article 1(b):

“The term ‘gender-based violence and harassment’ means violence and harassment directed at persons because of their sex or gender, or affecting persons of a particular sex or gender disproportionately and includes sexual harassment.”

4. Guideline for Gender Mainstreaming in Health Policies, Ministry of Health & Mass Media (2025)⁵⁰

Sri Lanka’s achievement of the Sustainable Development Goals (SDGs) by 2030 depends on overcoming barriers to healthcare access, through gender mainstreaming. This guideline provides practical strategies to overcome gender blind or gender neutral approaches to ensure that no individual is left behind in the pursuit of health and well-being for all.

Sex and Gender

“Sex and gender are integrally related and influence health in different ways.”

⁴⁹ International Labour Organization. (2026). *Sri Lanka Ratifies the ILO Convention on Violence and Harassment*. See [ILO News](#) for more information.

⁵⁰ Ministry of Health & Mass Media. (2025). *Guideline for Gender Mainstreaming in Health Policies*. Available [online](#).

“Gender is often confused with biological sex, which only refers to the anatomical and physiological characteristics that distinguish male and female bodies.”

“The distinction between sex and gender is crucial for recognizing gender issues related to health matters using and based on sex disaggregated data. As it is a social construct, gender varies from society to society and can change in the same society over time.”

Sex

“Sex refers to ‘the different biological and physiological characteristics of female and male persons, such as chromosomes, hormones and reproductive organs, whilst gender refers to the socially constructed characteristics of women, men, girls and boys and other gender identities. This includes norms, roles and behaviours associated with being a woman, man, girl or boy, or transgender as well how social relationships with each other are conducted. It is not solely defined by biological differences but is heavily influenced by cultural, social, norms that existed in the respective society at the time. These gender norms and roles are codified in traditions, practices and even in some laws influencing everything from career choices to interpersonal relationships. The impact of gender on individuals and society is profound. Gender stereotypes and discriminatory practices affect the choice of education, employment, healthcare, and fulfilling expectations of the individuals. Addressing gender-based disparities requires comprehensive strategies that promote equity, equality and inclusion.”

Gender

“Gender is a concept that defines the social, cultural, and behavioural differences associated with being male, female, or outside the traditional binary classifications, beyond just biological sex. It influences nearly every aspect of life, including identity, roles, relationships, and societal expectations.”

Transgender

“Transgender individuals are people whose gender identity differs from the sex they were assigned at birth. This identity is deeply personal and can encompass a wide spectrum, including binary (male or female) and gender diverse identities. Being transgender is not about physical appearance or medical procedures - it's about how someone identifies and experiences their gender.”

Gender Identity

“Gender Identity is understood to refer to each person’s deeply felt internal and individual experience of gender, which may or may not correspond with the sex assigned at birth, including the personal sense of the body (which may involve, if freely chosen, modification of bodily appearance or function by medical, surgical or other means) and other expressions of gender, including dress, speech, and mannerisms. Gender identity exists on a spectrum. This means that an individual’s gender identity is not necessarily confined to an identity that is completely male or completely female. When an individual’s gender identity differs from their assigned sex, they are commonly considered to be transgender,

*gender fluid, and/or gender queer. Whereas when an individual's gender identity aligns with their assigned sex, they are commonly considered cisgender.”*⁵¹

Annexure 2

The National Commission on Women

The National Commission on Women (NCW) is an independent, statutory body established in September 2025 under the Women Empowerment Act No. 37 of 2024. It is responsible for promoting, protecting, and advancing women's rights in Sri Lanka, while also overseeing the implementation of national policies related to gender equality.

The mandate of the NCW has been clearly outlined in Section 2 of the Act, and must be read together with Section 6 of the Act which sets out the powers, functions and duties of the Commission. For the purposes of this Brief, the Commission would like to highlight the following provisions which specify the mandate of the Commission in relation to women's rights and gender equality vis-à-vis the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW):

- Section 2: The objects of this Act shall be:
 - Section 2(b): to introduce mechanisms to give effect to the obligations undertaken by the Government of Sri Lanka in relation to women in terms of the Convention on the Elimination of All Forms of Discrimination Against Women, and in terms of applicable laws;
 - Section 2(d): to protect women from all forms of discrimination based on gender and sexual orientation;
- Section 3: Every woman shall be entitled to women's rights and no woman shall be denied of such rights;
- Section 6: The Commission shall exercise, perform and discharge the following powers, duties and functions for the purpose of achieving the objects of this Act:
 - Section 6(b): intervene in any proceedings relating to the infringement or imminent infringement of women's rights, pending before any Court, with the permission of such Court;
 - Section 6(e): conduct public inquiries in relation to the infringement or imminent infringement of women's rights;
 - Section 6(f): institute actions in any competent Court on its own motion in relation to the infringement or imminent infringement of women's rights;

⁵¹ World Health Organisation. (2016). *FAQ on Health and Sexual Diversity - An Introduction to Key Concepts*, Geneva. Available [online](#).

- Section 6(g): take such steps as may be directed by a Superior Court or by any other Court in respect of any matter relating to women's rights referred to by that Court;
 - Section 6(m): conduct programmes to create awareness and disseminate information regarding women's rights and internationally accepted norms relating to women's rights;
 - Section 6(o): make recommendations to the Government and the Minister
 - (i) on measures to be taken to ensure that domestic laws and policies and administrative practices are in accordance with internationally accepted norms and standards on women's rights;
 - (ii) on the formulation of regulations to be prescribed, legislation and administrative directives and procedures required for respecting promoting, protecting and fulfilling women's rights;
 - Section 6(q): take steps to ensure equality and protection to women of different categories and status identified by regulations made under this Act;
 - Section 6(r): monitor and evaluate the adherence by private persons and other non-state institutions to policies and practices in so far as those policies and practices relates to women's rights;
 - Section 6(s): undertake research in furtherance of the promotion and protection of women's rights and to promote awareness and provide education regarding matters relating to women's rights.
- Section 45 (interpretations): "women's rights" mean the rights of women to equality and non-discrimination as enumerated in Article 12 of the Constitution and the goals described in the Convention on Elimination of All Forms of Discrimination Against Women including promoting equal opportunities for women in access to education and employment and ensuring freedom from sexual harassment and all forms of violence against women enabling them to live in dignity.

Under Section 5 of the Act, the Commission comprises seven members. All Commissioners are appointed by the President based on recommendations for five members by the Constitutional Council, and for two members by the Women Parliamentarians' Caucus. The Act provides that at least five members, including the Chairperson, be women. The members are required to be persons having distinguished themselves in public life with proven knowledge, experience and eminence in the fields of law or legislation, trade unionism, management and administration, economic development, health, education, empowerment of women or have committed to increase the employment potential of women (Section 5(3)).